

GAHC010002722020



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C) 172/2020

1:UNION OF INDIA AND ANR.

REP. BY THE SECRETARY GOVT OF INDIA, MIN OF COMMUNICATION AND
INFORMATION TECHNOLOGY, DEPTT OF TELECOMMUNICATION,
SANCHAR BHAWAN, 20, ASHOKA ROAD, NEW DELHI- 110001

2: THE CONTROLLER OF COMMUNICATION ACCOUNTS
DEPTT OF TELECOMMUNICATION ASSAM TELECOM CIRCLE
BSNL BHAWAN 5TH FLOOR PANBAZAR GUWAHATI- 78100

VERSUS

1:SANJAY SARKAR

S/O- LATE GOPAL SARKAR, PRASANTI PRIME APARTMENT,
H NO. 37, AM ROAD, UNIT II, ULUBARI, GUWAHATI- 781007

Advocate for the Petitioner : Mr. S.C. Keyal, Assistant Solicitor General of India.

Advocate for the Respondent :

- B E F O R E -

HON'BLE THE CHIEF JUSTICE MR. AJAI LAMBA
HON'BLE MR. JUSTICE ACHINTYA MALLA BUJOR BARUA

ORDER

Date : 20-01-2020

(Ajai Lamba, C.J.)

Union of India, represented by Secretary, Government of India, Ministry of Communication & Information Technology, Department of Telecommunication, New Delhi and another have preferred this writ petition challenging order passed by Central Administrative Tribunal, Guwahati Bench dated 03.01.2019 in Original Application No.040/00104/2016 (*Shri Sanjay Sarkar -Vs- Union of India & Anr.*).

2. Mr. Keyal, learned counsel has impressed on the Court that although benefit of Modified Assured Career Progression Scheme (for short, "MACPS") could not have been given to the respondent, however, by virtue of the impugned order, the said benefit has been given. It has been pleaded that benefit of past service of respondent/applicant in Election Department under Arunachal Pradesh Government, before absorption with the writ petitioner has been given to the respondent, which is against MACPS.

3. On a query of the Court, learned counsel admits that the respondent was **absorbed** in service in Telecommunication Department.

4. In this context, we would like to refer to Clauses 9 & 10 of MACPS, which read as under:-

"9. 'Regular service' for the purposes of the MACPS shall commence from the date of joining of a post in direct entry grade on a regular basis either on direct recruitment basis or on absorption/re-employment basis. Service rendered on adhoc/contract basis before regular appointment on pre-appointment training shall not be taken into reckoning. However, past continuous regular service in another Government Department in a post carrying same grade pay prior to regular appointment in a new Department, without a break, shall also be counted towards qualifying regular service for the purposes of MACPS only (and not for the regular promotions). However, benefits under the MACPS in such cases shall not be considered till the satisfactory completion of the probation period in the new post.

10. Past service rendered by a Government employee in a State Government/statutory body/Autonomous body/Public Sector organisation, before appointment in the Government shall not be counted towards Regular Service."

(emphasised by us)

5. In view of the plain reading of the provisions extracted above, learned counsel for the petitioners states that let this writ petition be disposed of. The requisite benefit as provided vide the impugned order would be given to the respondent.

Learned counsel, however, states that let this not be treated as a precedent because the writ petitioners would like to seek clarification in this regard under Clause 9

of Office Memorandum dated 19.05.2009 issued under Modified Assured Career Progression Scheme for the Central Government civilian employees.

6. Considering the stand of Mr. Keyal, as recorded above, this petition is disposed of with a clarification that this shall not be treated as a legal precedent.

JUDGE

CHIEF JUSTICE

Comparing Assistant